

22NWCV00969 22NWCV00969

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 22NWCV00969 Hearing Date: August 21, 2026 Dept: P

CREDITORS

ADJUSTMENT BUREAU, INC. v. V&S

Carpet and Flooring Inc.

CASE NO.: 22NWCV00969

HEARING: 08/21/2026 @ 9:30 AM

#12

TENTATIVE ORDER

Counsel Eric L. Davis and Roberto Lara of Lara &

Davis LLP's motion to be relieved as counsel for Defendant V&S Carpet and

Flooring Inc. is GRANTED. This Order will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have appeared in the case.

Moving party to give notice.

Counsel Eric L. Davis and Roberto Lara of Lara & Davis

LLP (Counsel) moves to be relieved as counsel for Defendant V&S Carpet and

Flooring Inc. (Defendant).

Background

This is a breach of contract between Defendant and the State

Compensation Insurance Fund (SCIF) regarding unpaid premiums on Defendant's workers' compensation insurance contract with SCIF. SCIF assigned its right to

collect the unpaid premiums to Plaintiff Creditors Adjustment Bureau, Inc. (Plaintiff). Plaintiff alleges that Defendant failed to pay premiums to SCIF for three policies dating from May 10, 2019 to October 15, 2021. Defendant alleges it was in contact with SCIF's Audit Department regarding the dispute as to the unpaid premiums and was negotiating regarding the classification of employees.

Plaintiff filed the complaint on October 11, 2022. Plaintiff requested entry of default on December 27, 2022. Plaintiff then requested default judgment on January 4, 2023 and the Court entered default judgment as to Defendant on January 18, 2023.

On August 30, 2023, the Court granted Defendant's motion to set aside the default and default judgment. On September 8, 2023, Defendant filed an answer.

Legal Standard

"The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: ¶ 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; ¶ 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.)

California Rules of Court, rule 3.1362 requires that the following be submitted in support of an attorney's motion to be relieved as counsel pursuant Code of Civil

Procedure section 284, subd. (2): (1) a notice of motion and motion directed to the client (Form MC-051); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subd. (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subd. (1) (Form MC-052); (3) a proof of service evidencing service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Form MC-053). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (d), (e).)

Discussion

Counsel moves to be relieved as counsel for Defendant.

Here, in compliance with California Rules of Court, rule 3.1362, Counsel submits a notice of motion and motion on Form MC-051 directed to Defendant. Counsel also submits a declaration on Form MC-052 demonstrating good cause to be relieved as counsel for Defendant. Specifically, Counsel states that there has been a breakdown of the attorney-client relationship as Defendant has failed to fulfill its financial obligations to Counsel under their written agreement. Counsel provides a proposed order on Form MC-053 and proof of service of each document to the parties in this action. Therefore, the Court finds that Counsel has fully complied with the requirements under California Rules of Court, rule 3.1362.

The Court notes that as a result of this withdrawal, Defendant will have to retain counsel to proceed in litigating this case. (See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 ["a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney."].)

Accordingly, Counsel's motion to be relieved as counsel for Defendant is GRANTED. This Order will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have appeared in the case.